

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION TO ADOPT THE CERTIFICATE OF CANVASS AND DECLARATION OF RESULTS OF THE CANVASSING BOARD FOR THE CHEYENNE DOWNTOWN DEVELOPMENT AUTHORITY DISTRICT SPECIAL ELECTION HELD ON OCTOBER 18, 2023."

WHEREAS, a special election of qualified property owners of real property within the boundaries of the Cheyenne Downtown Development Authority District, excluding real property used exclusively for residential purposes, was duly called and held on October 18, 2023; and

WHEREAS, a majority of qualified electors cast their vote in favor of the proposal to authorize a special assessment of twenty (20) mills to be levied upon the assessed value of real property within the boundaries of the Cheyenne Downtown Development Authority District, excluding real property used exclusively for residential purposes, which assessment shall be levied for a period of four (4) years pursuant to Wyoming Statute §15-9-217(b).

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the special election held October 18, 2023, is hereby declared and ratified to have been duly called, ordered and held in compliance with law;

BE IT FURTHER RESOLVED, that with the approval of the governing body and a majority of votes cast at the special election on the ballot question submitted to qualified electors the special assessment of twenty (20) mills was authorized to be levied upon the assessed value of real property within the established boundaries of the Cheyenne Downtown Development Authority District of Cheyenne, Wyoming, excluding real property used exclusively for residential purposes, which assessment shall be levied for a period of four (4) years beginning January 1, 2024, pursuant to Wyoming Statute § 15-9-217 (b); and

BE IT FINALLY RESOLVED that the Certificate of Canvass and Declaration of Results, attached to this resolution as Exhibit A, is hereby adopted.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2023.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

**CERTIFICATE OF CANVASS AND
DECLARATION OF RESULTS FOR
CHEYENNE DOWNTOWN DEVELOPMENT AUTHORITY DISTRICT
SPECIAL ELECTION**

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

We, the undersigned members of the Canvassing Board, appointed and designated for the one counting center for the special election, said counting center being located in the Lobby of the Historic Union Pacific Depot Building, Cheyenne, Wyoming, do hereby certify to the City Clerk of the City of Cheyenne, Wyoming, that the election returns attached hereto as Exhibit A and by this reference made a part hereof, are true and correct returns of all votes cast and recorded by manual tally (including absentee ballots) at the special election held on October 18, 2023.

Polling Site	<u>FOR</u>	<u>AGAINST</u>	<u>BLANK</u>	Total Votes
	<u>77</u>	<u>19</u>	<u>0</u>	<u>96</u>
U.P. Depot Building 121 W. 15 th Street				

The question voted upon in said election was:

**“SHALL A SPECIAL ASSESSMENT OF TWENTY (20) MILLS BE
LEVIED UPON THE ASSESSED VALUE OF REAL PROPERTY WITHIN
THE BOUNDARIES OF THE CHEYENNE DOWNTOWN
DEVELOPMENT AUTHORITY DISTRICT, EXCLUDING REAL
PROPERTY USED EXCLUSIVELY FOR RESIDENTIAL PURPOSES,
FOR A PERIOD OF FOUR (4) YEARS PURSUANT TO THE PROVISIONS
OF WYO. STAT. § 15-9-217(b) FOR THE PURPOSES OF
(1) LANDSCAPING OR MAINTENANCE OF PUBLIC AREAS;
(2) PLANNING OR MANAGEMENT OF DEVELOPMENT OR
IMPROVEMENT ACTIVITIES; (3) PROMOTION OF PUBLIC EVENTS;
AND (4) ACTIVITIES IN SUPPORT OF BUSINESS RECRUITMENT AND
DEVELOPMENT?”**

In addition, we have examined the tabulation and count of votes recorded, and said examination and canvass shows that there were a total of 96 votes cast by qualified electors at said special election, and that of the total number of votes cast, 77 votes were cast reflecting “FOR” a special assessment and 19 votes were cast reflecting “AGAINST” the authorization of a special assessment; and we hereby declare that said question (carried) ~~(did not carry)~~ by a majority vote.

IN WITNESS WHEREOF, we, the undersigned members of the Special Election Canvassing Board, hereby certify that the results contained in this Certificate of Canvass and Declaration of Results is a true and correct tabulation of votes cast in the election held this 18th day of October, 2023.

CANVASING BOARD MEMBERS:


GIL CAMARGO


MARKESE GREEN


KYLIE SODEN, DEPUTY CITY CLERK